

charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the FAC do not support a prayer for punitive damages. Plaintiff generally alleges that she slipped and fell on a loose floor mat in Target on a rainy day. She further alleges that Defendant's response to the incident was inadequate. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of her rights; or of intentional misrepresentation or concealment with intent to cause injury. Therefore, the Motion to Strike is **GRANTED**. The proposed order will be executed.

9:00 a.m. Review Hearings

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. A motion to quash service of summons was filed by Defendant and set for hearing today. The motion was granted for failure to validly serve Defendant with the Summons and Complaint. The matter continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 64** for status of service. No appearance is necessary on today's calendar.

EL RIO ESTATES LLC VS. CARUSO

CASE NUMBER: 26CVG-00667

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

This matter is on calendar for review regarding status of service. The Court intends to dismiss the action pursuant to an OSC re Dismissal on this morning's 8:30 a.m. calendar. Therefore, the review hearing is dropped from calendar, and no appearances are necessary.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.

CASE NUMBER: 25CV-0208034

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

This matter is on calendar for review regarding status of service, improperly named defendants, and failure to record a notice of pendency of action. The proofs of service on file indicate that